CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
SPECIAL COMMISSION MEETING
December 17, 2009
1:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Thursday, December 17, 2009 at 1:00 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commission were present: Vice Mayor Myra L. Taylor, Commissioner Dorothy Johnson, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Clerk Deborah S. Irby and Assistant City Attorney Joseph Geller. Commissioner Rose Tydus arrived at 1:05 p.m.

2. INVOCATION:

The Invocation was delivered by Mayor Joseph L.Kelley.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. RESOLUTIONS:

A. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO NAME AN INTERIM CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Mayor Kelley stated that there is a void in the position of City Attorney with the resignation of Burnadette Norris-Weeks, P.A. The City Commission must fill that position; therefore, he brought the recommendation to name an interim City Attorney. At a later date the City Commission can go out for a permanent choice if they so desire. He

said that Mr. Geller is aware of the city and some of its challenges and it makes simple knowledge at this point to appoint him as interim City Attorney.

Although the city has a resignation from the City Attorney, Commissioner Johnson said she was under the impression that this firm was already the Assistant City Attorney for the city.

Upon reviewing the correspondence he requested from the City Clerk, Mayor Kelley said he was not very clear and therefore, so that this issue is not questionable he sponsored this resolution.

Commissioner Holmes stated that at the time when the City Commission hired an in-house City Attorney, whoever the Assistant City Attorney was at that time was supposed to cease.

Commissioner Tydus expressed her concerns relating to a time period for the Interim City Attorney and suggested that it be incorporated in the resolution.

As the sponsor of the resolution, Mayor Kelley's recommendation was six (6) months as the time frame for the Interim City Attorney.

Commissioner Tydus disagreed with the six (6) months because the process shouldn't take that long; however, she would be more amenable to three (3) months.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to incorporate the six months (6) time period in the resolution.

Vice Mayor Taylor agreed with Commissioner Tydus in that six (6) months is a long time and she can go along with three (3) months, but she cannot support six (6) months. Additionally, she stated that she wasn't sure if the City Commission needed another resolution or if they could caveat on this resolution, but they need to put out a public request for permanent attorneys.

Mayor Kelley advised that this resolution is specifically to name an interim City Attorney and it is designed to provide for legal representation. At the time the City Commission feels it wants to go out for a permanent, whether its three (3) months or six (6) months, then they will put out for a request for qualifications allowing firms to apply for the position of City Attorney.

There being no further discussion, the motion to amend the resolution passed by a 3-2 vote.

Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	No
Commissioner Holmes	Yes

Mayor Kelley	Yes

The original motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

B. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO NAME AN INTERIM CITY MANAGER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes for discussion.

Commissioner Johnson expressed her concerns relating to an applicant withdrawing his name from the list of applicants for the position of City Manager. She recommended appointing Clarence Patterson as Interim City Manager. Mr. Patterson is retired from the City of North Miami and brings 47 years of experience.

Vice Mayor Taylor agreed 100% with Clarence Patterson because she does believe he'll bring credibility and his experience would be an asset to this city.

Commissioner Johnson recalled that the current Interim City Manager didn't come into the city as Interim City Manager but as Capital Development Coordinator and the City Commission must be cautious because they didn't hire him into that position. In her experience in Human Resources, she said that Mr. Finnie would go back to his original position with the city. From that point, it would be for the City Manager to decide and it would be out of the hands of the City Commission.

Vice Mayor Taylor stated that she was in support of the name recommended by Commissioner Johnson.

In hearing the comments made by Commissioner Johnson relating to the current Interim City Manager going back to his original position as Capital Development Coordinator, Commissioner Holmes asked Manager Finnie whether he was in agreement with that.

Manager Finnie advised that he withdrew his name for the process and he is comfortable leading in the development and capital improvement side for the City of Opa-locka.

Based on the remarks made by Manager Finnie, Commissioner Holmes agreed to go along with the resolution; however, he wants to make sure that city doesn't end up with two (2) interim city managers. He stated that he is ready to go through the process of hiring a full time City Manager and he was not interested in appointing another interim city manager at that time.

Commissioner Tydus agreed with Commissioner Holmes and stated that she didn't understand the urgency for an interim city manager if the Commission, according to the following resolution, will be going through the process within a matter of days to select a permanent city manager.

Commissioner Johnson stated that although the applicant withdrew his resume, on November 20, 2009 at the deadline of receiving resumes, the applicant applied. From a legal standpoint, the city needs a safeguard of the integrity of the employment process. If it was the desire of the Commission to appoint whomever, they had the opportunity. The Commission voted by a 3-2 vote to go out and search for a City Manager which they did that process. Also, she said she didn't agree with the timeline in the resolution. She said that the individual she is recommending is not coming in permanently and he is not looking for any benefits; therefore the Commission must continue with the process. The applicant has applied and verbally she's been told that he has withdrawn and she doesn't want one of the applicants to file a complaint because of the perception saying that the Commission kept someone in the current seat.

She added that she wasn't aware of the expertise in the city's HR Department because she'd seen some things happen that are very questionable; therefore, she is hoping the city could have a Human Resources Director that can provide that advisement from this point forward.

Commissioner Tydus stated that she heard two things she needs clarification on and perhaps it is a legal interpretation the Commission needs. First of all, the Commission doesn't have before them the resolution appointing the interim city manager as current, so she doesn't know what the conditions of that position are and the termination other than it was for a 12 month period. Based on the memorandum from the City Manager to the City Clerk that the City Manager was relieving himself of the position to be placed in the position he was originally hired, she asked the attorney if that was legally correct and if that would be a decision made by the Interim City Manager? She added that she needed to review a copy of the resolution appointing the current interim city manager.

Attorney Geller advised that he didn't have a copy of the resolution appointing the interim city manager because he was not the attorney at the time and he doesn't believe he'd seen that resolution.

Manager Finnie stated the he believed Commissioner Tydus is referring to the letter he submitted withdrawing his name from the City Manager's review process, and in that letter he asked respectfully to the Commission that he is allowed to function on the

Capital Development, Community Development and fundraising side of the city's operations.

Commissioner Tydus asked, effective when?

Manager Finnie said he requested to withdraw his name from the process; but he never gave an effective date.

Commissioner Tydus stated that Manager Finnie requested to be taken from consideration for the permanent City Manager's position and was not resigning from the interim. Therefore, Manager Finnie is still operating in the capacity of Interim City Manager which brings her back to the question she initially had, what is the urgency of appointing an Interim City Manager when the Commission is in the selection process that will be completed in a matter of days and the current Interim City Manager has simply withdrawn his name from consideration.

Manager Finnie added that he believed there was a concern that because he withdrew his name in the middle of the process, there would be a possibility that he could've contaminated the search process by doing so.

Commissioner Tydus said she failed to understand how that would contaminate the search process.

Vice Mayor Taylor asked Commissioner Tydus what was her suggestion?

Commissioner Tydus said she could not support this resolution to name an Interim City Manager when the city has an Interim City Manager and they're in the selection process. She questioned the need for an Interim City Manager since the Commission is in the selection process and that process would be completed very soon.

Mayor Kelley stated that Mr. Finnie took his name out of consideration and he did it through the City Clerk of which the Commission has received a copy and as far as he's concerned, he is out of the running for that position. He expressed his concerns relating to appointing an interim City Manager to be interim although he is aware that Mr. Patterson is very capable and knowledgeable; however, it has nothing to do with his expertise. But because the city is in the process it wouldn't serve the city well due to the dynamics that take place when switching managers. Given that the Commission is already in the selection process for a City Manager, he suggested allowing the current interim City Manager to remain until the selection process is completed.

He further stated that he was not in favor of bringing in an interim City Manager just for a few weeks or months, however long it may take, when there is a current Interim City Manager who will not be getting the position because he withdrew his name from consideration. In his opinion, the Commission should allow Mr. Finnie to continue serving as Interim City Manager until a final decision is made.

Commissioner Holmes withdrew his second on the motion.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution recommending Clarence Patterson as Interim City Manager.

NOTE: Upon request, this portion of the minutes is transcribed in verbatim format.

Commissioner Johnson: In all due respect, the lack of HR experience and the lack of HR within our city, you guys going to pay now or we're going to pay later. There is on history that an applicant stays in a position, read the law, I mean this package came out, all of us had a chance to read it. Some of the ones that are now, when the Interim City Manager came in, they did not support it. So if we didn't support it then, we had time to do all the research to find out at that time how and when and what title the City Manager came in under and I find it very hardening but we have a lot of money to go to court and we pay out great fines and it's not that we're looking for legal sufficiency advisement. If right now HR, we were on board with a certified HR, HR would tell you the applicant cannot stay. The withdrawal came on yesterday and I'm not going to say much because one of the applicants is here that applied but what I'm going to say for the record and I would like to have it verbatim so when it comes back up again, I don't want no one here to say "we didn't know" because we know. So my hardening to all of the lack of experience of HR is that you're going to pay now or pay later. And since we've chosen to pay later, I would withdraw my motion.

This concludes the verbatim portion of these minutes.

Vice Mayor Taylor encouraged Commissioner Johnson to keep her motion because as discussed, they've indicated that they wanted the current Interim City Manager to move into another position which he has agreed to do. From the time he agrees to go into another position and the time the Commission goes through the process of January which is reflected in the following resolution, they need someone to serve as the Interim City Manager. If agreed upon by the Commission and the current Interim City Manager moves to Capital Improvement then she suggested a transition period is put in place between the current Interim City Manager and the next one. As far as she is concerned, when the current Interim City Manager withdrew his name from the process then he moved into the next position.

Commissioner Johnson agreed to proceed with the motion.

Commissioner Holmes asked Manager Finnie whether he was willing to continue serving as the Interim City Manager until the Commission went through the selection process of hiring a permanent City Manager.

Manager Finnie stated that he was willing to serve at the direction of the Commission.

Commissioner Holmes said he didn't understand what the problem is if the current Interim City Manager is willing to continue serving as Interim City Manager until the Commission completes the selection process for a City Manager.

There being no further discussion, the motion failed by a 3-2 vote.

Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Mayor Kelley	No

C. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO SPECIFY THE PROCESS FOR NAMING A PERMANENT CITY MANAGER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above resolution was read by title by Attorney Geller.

Attorney Geller advised that there was a revised resolution distributed to the Commission.

Mayor Kelley passed the gavel to Vice Mayor Taylor to initiate the motion.

It was moved by Mayor Kelley, seconded by Commissioner Holmes to pass the above resolution.

Mayor Kelley advised the Commission that before them is a revised version of the resolution inclusive of some dates. The dates were included in the resolution to create a process; however, every date included can be altered or changed but he would like to start the process with some dates and timeframe. If the Commission is not ready to select the top four at that meeting then he would like to proceed with setting the process to include for public interviews which does not preclude the Commission from having individual meeting with the candidates.

NOTE: Upon request, this portion of the minutes is transcribed in verbatim format.

Commissioner Johnson: First in section 2, I'm assuming this is a typo "January 11, 2009".

Attorney Geller: That is a typo ma'am, I'm sorry.

Commissioner Johnson: Secondly since it's mentioning, I'm assuming, the Interim City Manager, I would highly suggest from an HR point of view that the City Manager because it has already been clocked in and on record, that he withdraw. So I don't understand the process that we're doing now but I won't support it because I see two or

three errors in it. But I do know that the Interim City Manager will now have to go back and withdraw the letter of the whatever position he was in currently so make sure this is a part of this dialogue in verbatim mentioned in the minutes. Thank you!

This concludes the verbatim portion of these minutes.

Commissioner Johnson referred to the first whereas in the resolution which reads "the City presently has an Interim City Manager" which she assumed is Mr. Finnie because of the vote on the previous resolution and Mr. Finnie has submitted documentation withdrawing his name from the process and going into another position.

In an effort to understand Commissioner Johnson's point, Mayor Kelley stated that the Interim City Manager can ask the Commission to go back to his original position with the city but they don't have the authority in his opinion to do that. Even if the Commission would have passed the resolution to have Mr. Patterson come in as Interim City Manager, the Commission could not tell Mr. Patterson to put Mr. Finnie back at his original position but the matter didn't get to that point. Therefore, the Commission doesn't have that debate issue because Mr. Finnie is still the Interim City Manager and he is no longer under consideration for the position. At this point, the City Commission should be coming up with the timeframe as to how they would address the applications. As far as he is concerned, Mr. Finnie is a non-issue because he will only function in that position until the Commission makes a selection. Whomever the Commission selects as the City Manager will make the determination if he wants Mr. Finnie to work in whatever capacity.

He further stated that he is bringing this revised resolution to the Commission so that they can come up with a timeline process for naming a permanent City Manager and he made the caveat in section 2, there are dates that are sought. However, if the Commission needs additional time then they can make the changes, but they have to come up with the timeline.

Commissioner Holmes clarified that the Interim City Manager had not submitted a resignation from his position as Interim City Manager. The City Commission must be fair, right and within the law in terms of what they are doing.

Commissioner Tydus expressed her concerns in terms of the dates provided in Section 2 of the resolution.

Mayor Kelley advised that he was hopeful that the Commission could have made a decision at that time in terms of narrowing down the number of applicants to be interviewed at a later date. However, if the Commission is not ready to make that decision then they can change the date; but a decision has to be made in terms of the timeline in order to move the process forward.

Commissioner Tydus agreed with dealing with the issue at hand and scheduling the dates.

Attorney Geller advised that whatever the Commission wants to do, it can do because the process is on the agenda. The first sentence "will select applicants to be interviewed" it's not only the date but the Commission must specify this date or that date as well as how that selection will be made which is entirely at the discretion of the Commission.

Following brief discussion, it was moved by Commissioner Johnson, seconded by Mayor Kelley to amend Section 2 of the above resolution as follows: The City Commission will select the top four applicants to be interviewed at a Special Meeting to be scheduled on January 4, 2010. Public interviews with those applicants will be scheduled the week of January 11, 2010. The City Commission will schedule a Special Meeting on or about January 20, 2010 to select its top choice and discuss the terms for an offer. The city will then try to negotiate terms with the applicant selected.

There being no further discussion, the motion on the amendment passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	No
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

Vice Mayor Taylor relinquished the gavel to Mayor Kelley.

On the last two items, Manager Finnie stated that part of it has been about him but most of it had not been about him and it seemed like he'd been talked around. For the record, he said he appreciated everything discussed about transparency and he supports it. He understood Commissioner Johnson being very conservative and cautious to protect the city and he supports that. Additionally, he stated for the record that he is interested in the Capital and Development side to be able to finish what he started which would be in the best interest of the city from a capital market standpoint.

Lastly, he said that Clarence Patterson is a good man.

There being no further discussion, the motion on the above resolution passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

Vice Mayor Taylor directed the attorney to provide a memorandum to the Commission of everything just discussed relating to the above resolution for a process to name a permanent City Manager.

D. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RESCINDING RESOLUTION 09-7967 ACCEPTING THE PROPOSAL OF CHOICE ENVIRONMENTAL SERVICES, INC., FOR THE PROVISION OF RESIDENTIAL WASTE COLLECTION SERVICES PURSUANT TO RFP NO. 09-0821; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson stated that the issue with Choice Environmental Services, Inc. must be done by ordinance and therefore this resolution would rescind the previous resolution adopted by the Commission.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

5. FIRST READING ORDINANCES:

A. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; ACCEPTING THE PROPOSAL OF CHOICE ENVIRONMENTAL SERVICES, INC. FOR THE PROVISION OF RESIDENTIAL SOLID WASTE COLLECTION SERVICES PURSUANT TO RFP NO. 09-0821; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH CHOICE ENVIRONMENTAL SERVICES, INC. FOR THE PROVISION OF RESIDENTIAL SOLID WASTE COLLECTION SERVICES PURSUANT TO RFP NO. 09-0821, PAYABLE FROM ACCOUNT NO. 34-534340, IN A FORM ACCEPTABLE TO THE CITY ATTORNEY AND FOR FINAL APPROVAL BY THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Attorney Geller advised that as per the previous resolution by Commissioner Johnson, the proposed revised contract is attached.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor passing the above ordinance on first reading.

Commissioner Johnson asked, where did the city make the revision of the date March 2010 since they already received an extension on one vendor?

Manager Finnie stated that the date is when the Waste Management contract ends.

Commissioner Johnson stated that the document still reflects the date of November 2009; however, the contract date should commence when the extension for the other vendor ends which she believes is in March 2010.

Manager Finnie said that may be an error but he would look into it and make the change.

Attorney Geller agreed to make the necessary correction prior to second reading.

There being no further discussion, the above ordinance passed on first reading by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Out of room
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

B. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSAL FROM ROADRUNNER PROFESSIONAL SERVICE LLC, IN RESPONSE TO RFP NO. 09-1016 – "LAWN MAINTENANCE, ALLEY CLEANING AND MEDIAN MAINTENANCE SERVICES"; FURTHER AUTHORIZING THE CITY MANAGER TO NEGOTIATE AN AGREEMENT WITH ROADRUNNER PROFESSIONAL SERVICE LLC, FOR LAWN MAINTENANCE, ALLEY CLEANING AND MEDIAN MAINTENANCE SERVICES, CONSISTENT WITH THE ATTACHED CONTRACT FOR FINAL APPROVAL BY THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes for discussion.

Vice Mayor Taylor directed Attorney Geller's attention to the third whereas in the ordinance where it makes reference to the term of two years with options to renew three times for successive one year periods and asked for further clarification.

Attorney Geller advised that the city pursuant to terms set forth previously can exercise three different times a one year option. He said that was his understanding of what had been previously passed by resolution and in looking at it since it was for an initial two year period, they felt it did have to be as an ordinance and that's why it was brought forth in this format.

He further stated that the term is two years and at the conclusion of which pursuant to the contract and contract documents, the RFP and the proposal, the city may wish to renew for a year, then again for a second time and again for a third time.

Vice Mayor Taylor asked, is the language term unique to this one ordinance because she had not seen that language before in any other ordinance?

Since that arrangement previously passed, Attorney Geller said he was not certain. All he did in reviewing the contract when he noticed that it was for more than one year was to bring it forth as an ordinance. He said he took the language from the previous resolution adopted by the Commission for this same issue; however, he can further look into it, fix it or change it but since they passed the resolution, he took it as that's the language they wanted.

Because the ordinance was first reading, Manager Finnie stated that he would bring it back for second reading and make the appropriate adjustments, if required.

Of concern to Vice Mayor Taylor was making sure there was consistency with all ordinances.

Commissioner Johnson said that it was previously stated that the pocket on NW 27th Avenue was given to Roadrunner. She asked, is that correct because her understanding was that the area was FDOT's and not a part of the RFP?

Manager Finnie invited the Public Works Director to come forward and address the concern.

Lavelle Jenrette, Acting Public Works Director for the City of Opa-locka, came forward and stated that the area in question was a part of the old RFP and is also a part of the new RFP.

In reading the old RFP, Commissioner Johnson said that particular area belonged to FDOT. She asked, when did the city adopt that area to add to this contract?

She continued by asking for supporting documentation to substantiate what Mr. Jenrette just stated because she wanted to make sure that area was included to avoid change orders.

Manager Finnie agreed to provide Commissioner Johnson with the documentation.

Commissioner Johnson agreed to get with the City Manager to incorporate all the revisions prior to second reading of the ordinance.

There being no further discussion, the motion on first reading passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

6. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes.....

Vice Mayor Taylor interjected the adjournment to bring forth a concern before the City Commission.

Mayor Kelley advised that the City Commission cannot do any concerns at a Special Meeting because it may lead to other areas. He has learned when conducting a special meeting, he wants to make sure he deals with the agenda item(s).

Vice Mayor Taylor stated that Mayor Kelley said he would allow the Commission to speak and she is asking permission to give a concern.

Mayor Kelley said he allows the Commission to speak at a regular meeting but not a special meeting because at a special meeting he has always been directed to deal with the item(s) on the agenda and they cannot deviate from that.

He further asked for clarification from the City Attorney.

Attorney Geller advised that the Commission can take no action on anything that is not on the agenda at a special meeting; the only action items that can be considered are action items specifically agenda for purposes of notification of the public.

Vice Mayor Taylor said she doesn't have an action item just a concern she wants to bring to the attention of the Commission.

Commissioner Holmes suggested that the Commission allow the Vice Mayor to state her concern.

Mayor Kelley indicated that he didn't have a problem with Vice Mayor expressing her concern but he had concerns because this is a special meeting.

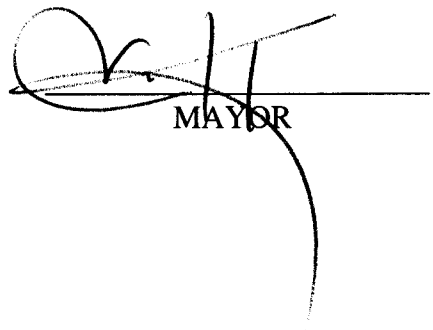
Attorney Geller suggested that the Commission exercise great care that what takes place is not something that becomes a discussion that is tantamount to something that would be voted on in the future.

Commissioner Holmes withdrew his seconded and Commissioner Johnson withdrew her motion to adjourn.

Vice Mayor Taylor expressed her concern relating to the fact that it has come to her attention that the city is, without getting into day to day operations, terminating employees at this time of the year which is wrong and unfair. If it had to be done, then the city could have done it before or after the holidays but not at Christmastime because this time of year the city should be as benevolent as possible. She asked that whoever took this action in terms of terminating employees should reconsider now and wait until a different time to do it.

Mayor Kelley stated to Vice Mayor Taylor that her concern has been notated; however, she should direct her concerns to the City Manager because those issues could come back.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to adjourn the meeting at 2:25 p.m.



MAYOR

ATTEST:



CITY CLERK